

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to) Docket No. RM26-4-000
the Interstate Transmission System)

REPLY COMMENTS OF THE ENTERGY OPERATING COMPANIES

In response to the Commission’s October 27, 2025 Notice Inviting Comments,¹ Entergy Services, LLC, (“Entergy Services”) on behalf of the Entergy Operating Companies,² offers the following brief reply comments as the Commission considers the Department of Energy’s proposed advance notice of proposed rulemaking (“proposed ANOPR”) regarding the interconnection of large loads. Again, the Entergy Operating Companies appreciate the Commission’s consideration of these important issues and the opportunity to provide input based on their experience. The purpose of these reply comments is to address some of the key topics raised in some commenters’ initial comments, in order to advance the debate on these topics and to provide information that the Entergy Operating Companies hope will assist the Commission as it decides how to proceed.³

First, the evidence presented in initial comments does not support a nationwide edict. As with any administrative action, the scope of any Final Rule must be based on substantial

¹ *Interconnection of Large Loads to the Interstate Transmission System*, FERC Docket No. RM26-4-000, Notice Inviting Comments (Oct. 27, 2025); *see also Interconnection of Large Loads to the Interstate Transmission System*, FERC Docket No. RM26-4-000, Notice Granting Extension of Time (Nov. 7, 2025).

² The Entergy Operating Companies are Entergy Arkansas, LLC, Entergy Louisiana, LLC (“Entergy Louisiana”), Entergy Mississippi, LLC (“Entergy Mississippi”), Entergy New Orleans, LLC, and Entergy Texas, Inc.

³ The Entergy Operating Companies do not necessarily agree with comments that are not addressed in these reply comments.

evidence and should be focused on resolving specific problems rather than broad hypothetical concerns. *Second*, in light of the evidence offered by many parties illustrating the success of existing large load interconnection processes and the Department of Energy’s objective of smoothing the path to additional interconnections, the Commission should consider a rule that establishes backstop procedures and does not interfere with existing state processes. *Third*, in order to avoid disrupting generator interconnection reforms, the Commission should not direct the creation of combined generator and load interconnection queues. *Fourth*, given the Department of Energy’s objectives, the threshold defining “large loads” should be based on the load’s size (Entergy Services recommends 100 megawatts (“MW”)) and not its voltage. *Fifth*, because it is everyone’s goal to ensure that interconnections to the bulk electric system proceed reliably, the Commission should reiterate that reliability remains the first priority. *Finally*, given the overwhelming support for existing and ongoing interconnection processes, the benefits of commercial certainty, and the need for the Commission and transmission providers to have sufficient time to implement any Final Rule, the Commission should clarify that existing and in-progress interconnections will be grandfathered.

I. Evidence Does Not Support Commission Action On a Nationwide Basis

Public utilities have the right to propose their own tariff provisions in the first instance.⁴ The Commission may order a public utility to file new rates, terms, or conditions for jurisdictional service only if it first finds the existing rates, terms, or conditions unlawful.⁵ The Commission’s decision must be based on substantial evidence and should be focused on resolving specific problems rather than broad hypothetical concerns.⁶

⁴ *E.g., Atl. City Elec. Co. v. FERC*, 295 F.3d 1, 9 (D.C. Cir. 2002).

⁵ *E.g., id.*

⁶ *E.g., Fla. Mun. Power Agency v. FERC*, 315 F.3d 362, 365 (D.C. Cir. 2003).

As Entergy Services explained in its initial comments, we believe the Commission has jurisdiction over interconnections of large loads as part of its jurisdiction over interstate transmission service.⁷ The Commission thus may order a public utility to adopt new or changed rules for the interconnection of large loads. It may do so, however, only if it finds substantial evidence that the new or changed rules are required to ensure that the rates, terms, or conditions for large load interconnections are just, reasonable, or not unduly discriminatory or preferential.⁸ And if it does so, the Commission must ensure that it does not encroach on the exclusive jurisdiction of retail regulators.⁹ Indeed, on the day initial comments were due in this proceeding, the Commission accepted a bilateral agreement related to a new data center being constructed.¹⁰ In its order, the Commission noted that the retail regulator retains authority to establish terms of retail service between the utility and large load customer, including retail consumer protection provisions.¹¹

When considering the claims made in initial comments filed in this docket—and whether those claims amount to substantial evidence showing that existing rates, terms, or conditions for large load interconnections are unjust, unreasonable, or unduly discriminatory or preferential—it is important to consider three well-established principles. First, the Commission has recognized that there are “significant differences between each” Regional Transmission Organization

⁷ Comments of the Entergy Operating Companies at 10-11 (“Entergy Comments”).

⁸ *E.g., Promoting Wholesale Competition Through Open Access Non-Discriminatory Trans. Servs. by Pub. Utils.; Recovery of Stranded Costs by Pub. Utils. and Transmitting Utils.*, Order No. 888-A, FERC Stats. & Regs. ¶ 31,048 at 30,176, 30,202, *order on reh'g*, Order No. 888-B, 81 FERC ¶ 61,248 (1997), *order on reh'g*, Order No. 888-C, 82 FERC ¶ 61,046 (1998), *aff'd in relevant part sub nom. Transmission Access Policy Study Group v. FERC*, 225 F.3d 667 (D.C. Cir. 2000), *aff'd sub nom. New York v. FERC*, 535 U.S. 1 (2002).

⁹ Entergy Comments at 12-17.

¹⁰ *Peco Energy Co.*, 193 FERC ¶ 61,148 (2025).

¹¹ *Id.* at P 32.

(“RTO”)/Independent System Operator, and that rules should reflect the characteristics of a particular system.¹² In a proceeding like this, the Commission cannot automatically extrapolate specific claims made about load interconnections in one area to other parts of the country.

For example, a number of initial comments filed in this proceeding address load interconnections within PJM Interconnection, L.L.C. (“PJM”).¹³ While Entergy Services takes no position on the merits of claims related to PJM or Transmission Owners within PJM, the Commission should recognize that those claims are PJM- or Transmission Owner-specific.¹⁴ There is no basis to assume they apply to other regions of the country or other Transmission Owners, which have different facts and different local rules applicable to load interconnections. There are pending dockets related to the integration of large loads in PJM, and the Commission can issue PJM-specific guidance or holdings in those dockets.¹⁵ With regard to the Midcontinent Independent System Operator, Inc. (“MISO”), the Commission has explained that “MISO differs from other RTOs because of the extensive use of bilateral contracts and cost-of-service regulation in MISO as compared to the prevalence of retail-choice in other RTOs.”¹⁶ These differences are important considerations when considering interconnections of large loads.

¹² *E.g.*, *Midcontinent Indep. Sys. Operator, Inc.*, 162 FERC ¶ 61,176 at P 57 (2018); *PJM Interconnection, L.L.C.*, 119 FERC ¶ 61,063 at P 39 (2007).

¹³ *E.g.*, Comments of Constellation Energy Generation, LLC; Comments of Monitoring Analytics, LLC (“Monitoring Analytics Comments”).

¹⁴ See Monitoring Analytics Comments at 1 (Monitoring Analytics, LLC, the Independent Market Monitor for PJM, attached a Complaint against PJM to its Comments, and made clear that its Complaint “is specific to the PJM market rules”).

¹⁵ See Motion for Expedited Action of Constellation Energy Generation, LLC, *PJM Interconnection, L.L.C.*, Docket Nos. EL25-49-000 *et al.* at 2-3 (filed on Nov. 21, 2025) (requesting Commission action and describing status of proceedings addressing PJM load interconnection processes).

¹⁶ *Midwest Indep. Tran. Sys. Operator, Inc.*, 139 FERC ¶ 61,199 at P 38 (2012) (citation omitted), *order on reh’g*, 153 FERC ¶ 61,229 (2015).

Second, existing rates, terms, and conditions for a service are not unjust or unreasonable simply because alternative approaches are available, or because a party may prefer such alternatives.¹⁷ For example, the fact that a party may prefer a different type of transmission or interconnection service for a large load interconnection than the services that currently are available, or different pricing for a particular service, does not make the current service or pricing unjust, unreasonable, or unduly discriminatory or preferential.

Third, a complainant or the Commission has the burden of proof under Section 206 of the Federal Power Act (“FPA”)¹⁸ to show that existing rates, terms, or conditions of service are unjust, unreasonable, or unduly discriminatory or preferential.¹⁹ Unsupported allegations are not sufficient to meet the burden of proof under Section 206.²⁰ The party with the burden of proof instead “must make an adequate proffer of evidence including pertinent information and analysis to support its claims.”²¹ Without such information, “alternative proposals are not ripe for consideration.”²²

¹⁷ *E.g., Building for the Future Through Electric Regional Transm. Planning and Cost Allocation*, Order No. 1920-B, 191 FERC ¶ 61,026 at P 80 (2025); *Petal Gas Storage, LLC v. FERC*, 496 F.3d 695, 703 (D.C. Cir. 2007).

¹⁸ 16 U.S.C. § 824e.

¹⁹ *E.g., Ameren Servs. Co. v. Midwest Indep. Transm. Sys. Operator, Inc.*, 125 FERC ¶ 61,161 at P 9 (2008) (“Complainants carry the burden of proof . . . and therefore must demonstrate, on the basis of substantial evidence . . . that the rate in effect is unjust and unreasonable.”), *order on reh’g*, 127 FERC ¶ 61,121 (2009), *aff’d sub nom. Ameren Servs. Co. v. FERC*, 739 F. App’x. 646 (D.C. Cir. 2018); *Southern Cos. Energy Marketing, Inc.*, 111 FERC ¶ 61,144 at P 24 (2005) (Commission recognizing it bore burden of proof in FPA Section 206 proceeding).

²⁰ *E.g., Californians for Renewable Energy, Inc. v. Pac. Gas & Elec. Co.*, 142 FERC ¶ 61,143 at P 18 (2013).

²¹ *Ill. Mun. Elec. Agency v. Central Ill. Pub. Serv. Co.*, 76 FERC ¶ 61,084 at 61,482 (1996).

²² *Cal. Indep. Sys. Operator Corp.*, 111 FERC ¶ 61,337 at P 27 (2005).

With those principles in mind, it becomes clear that, unlike the Order No. 888 proceeding,²³ the evidence here does not support Commission action on a nationwide basis. Again, Entergy Services takes no position on claims related to other regions, but there is no evidence that would support a finding that load interconnections in MISO generally, or the service territories of the Entergy Operating Companies specifically, are unjust, unreasonable, or unduly discriminatory or preferential. The evidence in fact shows to the contrary.

In its initial comments, MISO explained in detail the processes it uses and the results it has obtained related to large load interconnections.²⁴ That explanation shows that MISO's processes work well. With regard to the Entergy Operating Companies' service territories, the existing retail regulatory frameworks currently include rules that apply to interconnections and services to new loads. These rules are efficient and provide for significant input from retail regulators.²⁵ As we explained in our initial comments, under those frameworks, Google is developing a data center in Crittenden County, Arkansas; Meta is developing a data center in Richland Parish, Louisiana; and Amazon Web Services ("AWS") and Avaio are developing data centers in Mississippi.²⁶ These data centers have moved forward under time-frames consistent with the customers' business needs, and a large part of our ability to move quickly is due to

²³ *Standardization of Generator Interconnection Agreements & Procs.*, Order No. 2003, 104 FERC ¶ 61,103 at P 19 (2003) ("[t]he record underlying Order No. 888 showed that public utilities owning or controlling jurisdictional transmission facilities had the incentive to engage in, and had engaged in, unduly discriminatory transmission practices"), *order on reh'g*, Order No. 2003-A, 106 FERC ¶ 61,220, *order on reh'g*, Order No. 2003-B, 109 FERC ¶ 61,287 (2004), *order on reh'g*, Order No. 2003-C, 111 FERC ¶ 61,401 (2005), *aff'd sub nom. Nat'l Ass'n of Regul. Util. Comm'rs v. FERC*, 475 F.3d 1277 (D.C. Cir. 2007).

²⁴ *E.g.*, Comments of Midcontinent Independent System Operator, Inc. at 6-13 ("MISO Comments").

²⁵ Entergy Comments at 8.

²⁶ *Id.* at 7.

partnering with our states on economic development and existing retail frameworks that are efficient.²⁷

The addition of these loads will provide benefits to other customers, improve reliability, and result in upgraded facilities and transmission infrastructure. For example:

- The addition of AWS will help Entergy Mississippi create \$2 billion in benefits for all its customers, including \$1.3 billion in savings on new power generation costs, \$700 million in savings on future fuel costs, and \$300 million in projects to improve grid reliability for all customers made possible by AWS revenue, at no cost to other Entergy Mississippi customers.²⁸
- Meta’s data center being an Entergy Louisiana customer means Entergy Louisiana’s current customer bills will be lower than they otherwise would have been. There will be (a) \$650 million in customer savings over Meta’s 15-year agreement, supported by Meta’s contributions to costs like storm recovery and resilience, (b) a 10% reduction in the cost of grid upgrades for other customers due to Meta’s electricity bill payments, and (c) 10% lower storm charges for Entergy Louisiana customers once the Meta facility is operational.²⁹

It is clear that the Entergy Operating Companies have every reason to work with large load customers and retail regulators to interconnect large loads quickly and reliably.

As discussed above, claims about other regions of the country or general claims with no factual support³⁰ do not show that the rates, terms, or conditions of interconnections of large loads in MISO or the Entergy’s Operating Companies’ service territories are unjust,

²⁷ *Id.* at 8.

²⁸ Entergy website, AWS fact sheet (2025), available at https://www.entergy.com/wp-content/uploads/AWS_WinMississippi_001.pdf.

²⁹ *Id.*, Meta fact sheet (2025), available at <https://www.entergy.com/wp-content/uploads/2025/11/MetaDataCenterFactSheet.pdf>.

³⁰ *E.g.*, Comments of Eolian L.P. at 17-19 (claiming with no cited factual support that “[a]ll of these problems are made worse by the absence of standardized large load interconnection procedures”); Comments of Geronimo Power, LLC at 2 (claiming with no factual support that “the current load interconnection framework is falling short and legacy processes are proving incapable of meeting the demands of the industries of the future”); Comments of Invenergy Wind Development North America LLC at 7 (claiming with no factual support that the “current patchwork of interconnection rules promotes anticompetitive behavior and discourages even viable load interconnection requests”) (“Invenergy Comments”).

unreasonable, or unduly discriminatory or preferential. For these reasons, the Commission should not adopt the requests of some Commenters asking the Commission to adopt standardized rules across the country and to require that such rules be included in *pro forma* procedures that would be filed with the Commission.³¹ At most, and as we discuss further below, a backstop role can be justified for the MISO or Entergy Operating Company regions.

II. The Commission Should Consider Establishing a Backstop Role in Order to Support Well-Functioning Existing Load Interconnection Procedures

As many commenters have expressed, in certain regions of the country, existing load interconnection procedures are, by and large, working well.³² As discussed above, the record does not support any finding of undue discrimination; in contrast to landmark Commission rulemakings like Order Nos. 888,³³ there is no concrete evidence of a nationwide load interconnection problem. For these reasons, the Entergy Operating Companies recommend that the Commission take action that is both supported by the record and consistent with the Department of Energy's stated objectives in the proposed ANOPR: the Commission should consider establishing a backstop role, so that if load interconnection procedures are stalled for an unreasonable period of time, a large load has clear procedural recourse. At least two other commenters have also suggested such a role based on principles of cooperative federalism.³⁴

Defining backstop procedures would serve at least two purposes: besides providing large loads with greater certainty about how and when they can be studied, it would also establish an

³¹ *E.g.*, Comments of Vistra Corp. at 4.

³² *E.g.*, MISO Comments at 1-18; Comments of the Organization of MISO States, Inc. at 3; Comments of Consumer Energy Alliance at 2-3 ("Consumer Energy Alliance Comments"); Initial Comments of the Louisiana and Mississippi Public Service Commissions at 2.

³³ *E.g.*, Order No. 2003, 104 FERC ¶ 61,103 at P 19 ("[t]he record underlying Order No. 888 showed that public utilities owning or controlling jurisdictional transmission facilities had the incentive to engage in, and had engaged in, unduly discriminatory transmission practices").

³⁴ Consumer Energy Alliance Comments at 4-5; Initial Comments of the Arkansas Public Service Commission at 3.

incentive for states and retail electric providers to act expeditiously, particularly if they wish to continue incorporating transmission interconnection into their broader electric service agreements for new loads. A backstop rule would also enable transmission providers to exercise necessary flexibility and judgment in formulating the studies and procedures that are best suited to their systems. These may vary due to regional differences, and for reliability purposes, it is important that the Commission allow for such variations.

III. The Commission Should Not Establish a Standard Combined Queue for Load and Generation Interconnections

As Entergy Services explained in its initial comments, the Commission should not establish a standard queue for load interconnections.³⁵ In addition to the reasons we discussed, we agree with MISO's discussion explaining why a standard queue would lead to delays in studying load interconnection requests.³⁶ Establishing a standard queue for load interconnections would be particularly unwarranted in areas such as the service territories of the Entergy Operating Companies, where interconnections of large loads are being completed under efficient and timely processes overseen by retail regulators.³⁷

Certain parties go beyond arguing for a standard queue for load interconnections, and argue that the Commission should establish a standard combined queue for load and generation interconnections.³⁸ Establishing a combined queue for load and generation would be even more

³⁵ Entergy Comments at 19-20.

³⁶ MISO Comments at 13-17.

³⁷ Serving new large loads is facilitated by mechanisms like the MISO Expedited Resource Addition Study ("ERAS"), which calls for retail regulators to verify that a generating unit that is requesting interconnection service is associated with a resource adequacy need (which may arise due to the anticipated service needs of a new large load). To be clear, ERAS is not a combined queue. It does not displace or eliminate the need for the Entergy Operating Companies and MISO to study the related large loads; rather, ERAS includes provisions to ensure that MISO can efficiently study and make plans for generation additions to the system.

³⁸ *E.g.*, Invenergy Comments at 4.

problematic than a standardized queue for load interconnection requests only. While it is not clear exactly how a combined queue proposal would be implemented, it is clear that generation and loads should be studied separately, as load and generation interconnections have separate effects on the bulk electric system.³⁹

Moreover, a combined queue likely would lead to delays in processing interconnection requests even beyond those that would arise from a standardized load interconnection queue. The generator interconnection queue historically has suffered problems with delays and uncertainty,⁴⁰ and adding an additional element to that process only can be expected to exacerbate those problems, or potentially disrupt the ongoing reforms that are intended to reduce queue times.⁴¹

IV. A 20 MW Threshold to Define Large Loads is Too Low

Among the principles proposed by the ANOPR is that any reforms adopted in a Final Rule should apply only to new loads of 20 MW or more. As the Entergy Operating Companies explained in their initial comments, any threshold lower than 75-100 MW is more likely to capture speculative projects and could result in a Final Rule so broad that it would render it ineffective and reduce or eliminate any efficiencies that would otherwise be gained.⁴² While the

³⁹ Entergy Comments at 27-28.

⁴⁰ *Improvements to Generator Interconnection Procedures and Agreements*, Order No. 2023, 184 FERC ¶ 61,054 at P 3 (noting the “large interconnection queue backlogs and uncertainty regarding the cost and timing of interconnecting to the transmission system”), *order on reh'g*, 185 FERC ¶ 61,063 (2023), *order on reh'g*, Order No. 2023-A, 186 FERC ¶ 61,199 (2024).

⁴¹ *E.g., Midcontinent Indep. Sys. Operator, Inc.*, 190 FERC ¶ 61,057 (2025) (order accepting MISO Tariff revisions to implement a cap on the amount of MW that can be studied in a cluster in MISO’s definitive planning phase interconnection queue study process); *Midcontinent Indep. Sys. Operator, Inc.*, 186 FERC ¶ 61,054 (2024) (order accepting MISO Tariff revisions to increase milestone payments, adopt an automatic withdrawal penalty, revise certain withdrawal penalty provisions, and expand site control requirements for interconnection facilities).

⁴² Entergy Comments at 23.

initial comments filed in this proceeding do not yield a consensus for a specific MW threshold, they do yield a consensus that a threshold of 20 MW is too low. A majority of the commentors outlined concerns similar to those outlined by the Entergy Operating Companies in response to the proposed 20 MW threshold: namely, that a threshold as low as 20 MW would include projects unlikely to have a significant impact on the transmission system,⁴³ and in turn, that consideration of these speculative or unimpactful projects would result in delay when administering any process adopted in a Final Rule.⁴⁴

Some commenters proposed metrics other than load size measured in megawatts for purposes of defining a large load. For example, NRG Energy, Inc. proposed that the Commission employ a rebuttable presumption that interconnections with 230-kV facilities be considered large loads.⁴⁵ However, employing a rebuttable presumption of a certain voltage does not promote the stated goals of the ANOPR of efficiency and speed of process. Instead, a rebuttable presumption of a certain voltage does two things: it presents an opportunity for delay as the presumptive level is disputed, and it uses a voltage level as a proxy for establishing a megawatt threshold to define a large load. Rather than establishing a threshold, this would unnecessarily complicate what should be a simple and quick determination of eligibility. Establishing a megawatt threshold, albeit one much higher than 20 MW, would eliminate the need for any additional process around what qualifies as a large load under any Final Rule.

⁴³ *E.g.*, Comments of ITC Holdings Corp. at 3 (“The proposed threshold of 20 MW may capture a range of projects that are unlikely to have significant impacts on the broader grid, and which may in fact be slowed by a process intended for the unprecedentedly large loads that are now being proposed for immediate construction.”).

⁴⁴ Entergy Comments at 21-26; *see also, e.g.*, Comments of Old Dominion Electric Cooperative at 5 (“If the threshold is too low, it could lead to a greater number of load interconnections being processed under the large-load interconnection rules than is feasible or necessary.”).

⁴⁵ Comments of NRG Energy, Inc. at 9 (“NRG Comments”).

Finally, only a handful of commenters expressed any support that a 20 MW threshold would be appropriate for determining large loads in the context of the expedited consideration contemplated by the ANOPR.⁴⁶ Initial comments that support the 20 MW threshold do so with a nod to maintaining consistency with Order No. 2003 or with vague assertions that the 20 MW amount has worked well in other Commission proceedings.⁴⁷ As Entergy Services and others explained in their initial comments, the principles guiding the Commission's determination in Order No. 2003 regarding generally applicable interconnection procedures are largely irrelevant, or even at odds with the proposed ANOPR's stated goals of a timely and orderly interconnection of large loads.⁴⁸ Therefore, establishing a 20 MW threshold based on maintaining consistency with Order No. 2003 becomes an arbitrary metric that may do more harm than good.

Accordingly, while some commenters are hesitant to assign a specific MW threshold for the definition of large loads, the consensus among commentors is that increasing the threshold above 20 MW, to an amount of 75 MW-100 MW, would suffice. The Entergy Operating

⁴⁶ *E.g.*, Comments of EDF Power Solutions, Inc. at 12 (“[20 MW] is an appropriate threshold for new large load interconnections because it is likely to include the bulk of new large load interconnections.”); *see also*, Comments of the California Independent System Operator, Inc. at 5 (“CAISO Comments”); Comments of Terraflux LLC at 1 (“Terraflux Comments”); Comments of Fervo Energy Co. at 2-3 (“Fervo Comments”).

⁴⁷ *E.g.*, Fervo Comments at 3 (“Aligning the applicability threshold for large-load and hybrid interconnections with this framework can ensure procedural consistency, reduce administrative complexity for transmission providers, and create a predictable pathway for customers whose system impacts are similar to those of large generators.”); CAISO Comments at 5 (“The 20 MW threshold has proven to be a reliable figure to assess the risk a generation or storage facility represents to the transmission grid.”); TerraFlux Comments at 1 (“We agree with the second principle's assertion that reforms should apply to new loads greater than 20MW and new hybrid facilities greater than 20MW, aligned with FERC's generation thresholds of the [Large Generator Interconnection Procedure].”).

⁴⁸ Entergy Comments at 22-24; *see also* Comments of the Louisiana and Mississippi Public Service Commissions at 8 (“20 MW is too low and will result in FERC exercising interconnection jurisdiction over hundreds and thousands of new loads, far beyond FERC's capabilities of reasonably addressing.”).

Companies agree with the consensus that 20 MW is too low and recommend 100 MW as an appropriate threshold for defining large loads covered by the proposed ANOPR.

V. Transmission Reliability Must Remain the Commission’s First Priority

In response to the fifth principle, regarding the study of hybrid facilities,⁴⁹ a number of commenters contend that hybrid facilities should be studied based on their net injections or withdrawals.⁵⁰ Some argue that even if the load and generation interconnection points differ, there may still be a basis to “net” the load and generation as a “hybrid” resource.⁵¹ Others argue that the term “hybrid” resource should be expansive and include storage and other technologies.⁵²

As we explained in our initial comments, the reliability implications of interconnecting hybrid loads are not as simple as some commenters would suggest.⁵³ Studying only a hypothetical “net” injection or withdrawal, without considering the system effects of the hybrid load demanding up to its full gross level of demand (when, for example, its co-located generating facility is unavailable), would create unreasonable reliability risks.

These already complex questions become even further complicated and necessitate additional studies to ensure bulk electric system reliability if the scope of “hybrid” resources is broadened. Including battery storage, for example, requires additional study scenarios (as compared to a traditional generator), because these facilities both draw from and inject onto the

⁴⁹ Proposed ANOPR at ¶ 22.

⁵⁰ *E.g.*, Comments of ENGIE North America, Inc. at 3-6; Comments of the Load Flexibility Parties at 6 (“Load Flexibility Comments”); Comments of Bloom Energy Corp. at 8-9.

⁵¹ *E.g.*, Eolian Comments at 28 (suggesting hybrid loads should include those where the “generation/storage component” is “electrically close”).

⁵² *E.g.*, Comments of the U.S. Energy Storage Coalition at 1-2; Load Flexibility Comments at 6.

⁵³ Entergy Comments at 26-30.

grid — a fact that storage developers like GridStor LLC do not dispute.⁵⁴ Their impacts on system voltage are also different from those of traditional generating facilities. Similarly, if “flexible loads” (like demand response or curtailable loads) are incorporated into the definition of “hybrid facilities,” the Commission must ensure that transmission providers have sufficient time to design studies that accurately depict the potential impacts of such “flexible” load, including any flexibility limitations they may have. Curtailment raises a number of additional questions and issues, like the requisite notice that must be provided to curtailment providers, how curtailment integrates with existing RTO market processes, whether the curtailment can be called upon for capacity or transmission issues, and how often (and for how long) the curtailment can be called. Any of these can materially impact whether the curtailment offers meaningful value to the transmission system. And, in MISO, there are already a set of defined demand response products which are available to new loads. Thus, it is premature to assume that the breadth of hybrid options proposed by various commenters should all be entitled to expedited interconnection study or that expedited study is feasible.

While some commenters offer suggestions as to the types of additional studies and parameters that should apply to “flexible” loads,⁵⁵ there has not been enough time for all key stakeholders to sufficiently analyze these suggestions to determine whether they would be adequate to facilitate the reliable integration of flexible loads onto the bulk electric system, whether they are reasonable or fair to other participants, and how long it would take to implement them.

⁵⁴ Comments of GridStor LLC at 3-5.

⁵⁵ *E.g.* Comments of Critical Loop at 2-3.

Further, demand response and/or curtailability are not solely load interconnection issues – rather they are part of the development of adequate supply arrangements for new retail service. In jurisdictions with bundled retail service, supply arrangements are part of the terms and conditions of retail service, which is the responsibility of state and retail regulators. In such circumstances, the Commission should not use a new load interconnection rule to substitute its judgment for that of state regulators about what constitutes reliable retail supply arrangements.

The Entergy Operating Companies support the development of new technologies to enhance overall resource adequacy and to facilitate the integration of new loads in this growth era, but it is crucial that these technologies are tested and integrated responsibly and reliably onto the existing bulk electric system. As the North American Electric Reliability Corporation explained in its initial comments, it has already begun a number of deliberate efforts to evaluate the reliability implications of interconnecting large loads.⁵⁶ It should be given sufficient time to perform this work.

VI. The Commission Should Confirm That the Orderly Transition to and Implementation of a New Rule Will Not Encumber Existing and Developing Agreements

A strong consensus among commenters has settled on the point that existing load interconnection and load interconnections in progress at the time of the issuance of any Final Rule should be grandfathered.⁵⁷ The Commission should affirmatively ensure no retroactive impact on in-process or existing agreements. The breadth and volume of comments that recommend maintaining load interconnection processes already underway reflect current

⁵⁶ Comments of The North American Electric Reliability Corporation at 13-17.

⁵⁷ *E.g.*, NRG Comments at 28-29; Comments of Vantage Data Centers at 12; Comments of Office of the Ohio Consumers' Counsel at 12; Comments of the American Clean Power Association at 2; Comments of Amazon Energy LLC at 3-4.

successes in some regions. Projects that have already made significant financial, contractual, and engineering commitments should not be disrupted.

Regardless of the specifics in the Final Rule, enough time should be provided for implementation. A significant transition period will be necessary for states, stakeholders and transmission owners to adjust to a new regulatory scheme.

While most commenters have not suggested specific dates or lengths of time from issuance of a Final Rule to execution, the required time for any transition and implementation will depend on the scope and details contained in the Final Rule. Until such rules are better defined, it is not possible to identify a reasonable time for implementation of those rules. Whatever rules are adopted will almost certainly require resolution of numerous technical and complicated issues,⁵⁸ and in many cases consideration of already existing rules. It follows that a suitable transition period should be provided, and more concrete feedback can be given once a specific proposal is issued.

VII. Conclusion

As discussed above and in their initial comments, the Entergy Operating Companies appreciate the Commission's consideration of these important issues, and ask that the Commission factor into its decision-making the legal and policy recommendations identified in both sets of comments.

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⁵⁸ E.g., Comments of Transmission Access Policy Study Group at 7-8 (requesting a Technical Conference).

Karis Parnham
Entergy Services, LLC
919 Congress Ave
Suite 701
Austin, TX 78701
512-487-3986
kparnha@entergy.com

Respectfully Submitted,

/s/ Andrea Weinstein
Andrea Weinstein
Glen Bernstein
Michael Chase
Jeffrey Phillips
Entergy Services, LLC
101 Constitution Avenue, NW
Suite 200 East
Washington, DC 20001
202-530-7342
aweinst@entergy.com

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